

		v. Tenet Healthcare Corp., supra at 1110–1111 [“Evidence of the ratification may come in many forms, for example where an employer fails to terminate, investigate, or respond to charges that an employee has committed an intentional tort”]; FAC ¶ 17 [alleging ratification] ¶ 36 [“Defendants ratified Perpetrator(s)’ sexual abuse of Plaintiff because Defendants had actual knowledge that Perpetrator(s) had sexually harassed and abused minors, including but not limited to Plaintiff, yet they intentionally turned a blind eye and still allowed Perpetrator(s) to work for Defendants, and did nothing to prevent any further abuse from occurring ... Defendants did not discipline or discharge Perpetrator(s); as such, they accepted and thus ratified his/her conduct”]; ¶ 42 [same].) Finally, the FAC is not so uncertain (Code Civ. Proc., § 430.10, subd. (f)) that moving defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against it. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616; see also Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135 [uncertainty demurrers “strictly construe[d] ... because ambiguities can reasonably be clarified under modern rules of discovery”].) Plaintiff is granted 10 days’ leave to amend the 3rd and 6th causes of action. Moving party shall give notice.
3	Bakhshaei vs. Perez 2023-01353623	Motion to Compel Answers to Form Interrogatories ***Continued to May 30, 2025 at 9:30 AM by minute order dated 04/10/2025 (ROA 52)***
4	Wang vs. Geng 2022-01242154	1. Motion for Reconsideration 2. Case Management Conference

		Defendant/Cross-Complainant Yao Geng's motion for reconsideration on Plaintiff/Cross-Defendant Shasha Wang's motion for summary judgment or, in the alternative, summary adjudication is DENIED. (Code Civ. Proc. ["CCP"], § 1008, subd. (a).) Defendant/Cross-Complainant has failed to raise any "new or different facts, circumstances, or law." (Id.) Defendant/Cross-Complainant also did not comply with the statutory requirement requiring an affidavit/declaration that states "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." Even if Defendant/Cross-Complainant's arguments based on CCP section 916 could be considered "new" (even though the statute itself is not "new"), Defendant/Cross-Complainant has not offered any satisfactory explanation for failing to raise this issue earlier as part of its opposition to the motion for summary judgment/adjudication. (See Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 688, 690; N.Y. Times Co. v. Super. Ct. (2005) 135 Cal.App.4th 206, 213 ["the information must be such that the moving party could not, with reasonable diligence, have discovered or produced [earlier]".]) **Case Management Conference is continued to April 23, 2025 at 9 AM. Plaintiff/Cross-Defendant shall provide notice of all the above.
5	Brodeur vs. Target Corporation 2020-01242154	1. Motion for Discovery Protective Orders 2. Motion to Compel Production 3. Motion to Compel Answers to Special Interrogatories Defendant Target Corporation's Motion for Protective Order Defendant Target Corporation's Motion for Protective Order is GRANTED in part. (Code Civ. Proc. §2030.090.) Plaintiff Michael Brodeur has failed to meet his burden to substantiate the necessity of Plaintiff's Special Interrogatories, Set Four, consisting of 59 total interrogatories. (See Code Civ. Proc. §2030.040, subd. (b).) The Court finds that these additional interrogatories are unwarranted. (Code Civ.

		Proc. §2030.090, subd. (b)(2).) The Court finds that these Interrogatories are superfluous and are intended to unnecessarily increase the cost of litigation. This is especially true in light of the fact that substantially all of the information Plaintiff seeks through these interrogatories could be addressed by Defendant producing an unredacted copy of the spreadsheet (the document Bates Labelled as TARGET000655-000665). Accordingly, Plaintiff's Special Interrogatories, Set Four is limited as follows: Defendant shall disclose the age of each employee listed in the spreadsheet located at bates range TARGET000655-000665. This balances the privacy interest of third party employees against Plaintiff's interest in establishing his case for age discrimination. Plaintiff Michael Brodeur's Motion to Compel Further Responses to Special Interrogatories Plaintiff Michael Brodeur's Motion to Compel Further Responses to Special Interrogatories is DENIED as moot, in light of the foregoing ruling on Defendant Target Corporation's Motion for Protective Order. Plaintiff Michael Brodeur's Motion to Compel Further Responses to Request for Production of Documents, Set Three Plaintiff Michael Brodeur's Motion to Compel Further Responses to Request for Production of Documents, Set Three is DENIED. Defendant shall provide further verified code compliant responses to Plaintiff's Request for Production of Documents, Set Three within 30 days of notice. (See Code Civ. Proc. §2031.220.) For the purpose of these supplemental responses, the requests shall be limited to seeking only non-privileged communications related to the disciplinary actions. In light of Defendant's supplemental production, no further production of documents is warranted. Plaintiff has established good cause for further production. (See Bellah Decl. ¶12.) Namely, these documents are directly relevant to Plaintiff's allegation that Defendant has a pattern and practice of discriminatory treatment. Plaintiff has adequately met and conferred regarding the dispute raised in the motion. (See Bellah Decl. ¶¶ 3-4, Exh. 3.) Plaintiff's separate statement sufficiently complies with the requirements of Cal. Rules of Court, Rule 3.1345. (See
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		ROA No. 178.) Defendant's waiver argument is not persuasive. The Requests at issue here are sufficiently different from the Requests identified in Plaintiff's Request for Production, Set Two. Moreover, New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403 was made in the context of a motion for discovery sanctions seeking further production of stale Requests for Production, rather than a motion to compel further responses to a new set of Requests for Production. Here, the supplemental responses were served on 10/9/24, and did not object that the Requests were duplicative of prior Requests. The Motion was filed 11/25/24, which is within the 45 day period to move to compel further responses. Since Plaintiff has established the grounds for the motion to compel further responses, the burden shifts to Defendant to establish the sufficiency of its responses. Defendant has failed to demonstrate that its responses comply with Code Civ. Proc. §2031.220. (See Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) The Court declines to award monetary sanctions. Plaintiff shall provide notice of all the above.
6	Annan vs. CONAM Management Corporation 2022-01278541	1. Demurrer to Amended Complaint 2. Motion to Quash Service of Summons 3. Motion to Strike Complaint 4. Case Management Conference ***Continued to May 30, 2025 at 9:30 AM by minute order dated 04/10/2025 (ROA 157)***
7	Cortez vs. Bergan 2023-01338315	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Answers to Special Interrogatories